

**IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON**

Barry Washington,

Petitioner,

By and through Ash Le' Penn,

Next Friend,

v.

Caprice Massey,

In her official capacity as Sheriff of Washington County,

Respondent

Case No.: Number

25CV33562

**PETITION FOR WRIT OF HABEAS CORPUS
OR. REV. STAT. § 34.310 ET SEQ.
EXPEDITED REVIEW & HEARING
REQUESTED**

**MOTION FOR TEMPORARY RESTRAINING
ORDER**

I. Introduction

1. Petitioner is currently incarcerated at Washington County Jail, 215 SW Adams Avenue, Hillsboro, Oregon 97123.
2. Petitioner is restrained of liberty under color of a judgment and warrant issued because of a term of post-prison supervision ("PPS") imposed following the revocation of presumptive probation.
3. This petition is filed in the county of confinement pursuant to Or. Rev. Stat. § 34.320 and served on all required parties under Or. Rev. Stat. § 34.340.
4. This petition is brought by Ash Le' Penn, as next friend pursuant to Or. Rev. Stat. § 34.355 on behalf of Barry Washington, who is unable to personally pursue this relief due to incarceration and extremely limited access to legal resources.
5. Petitioner has no other plain, speedy, or adequate remedy in the ordinary course of law as required by Or. Rev. Stat. § 34.330(4).
6. An emergency hearing on the matter is requested within 24-48 hours and expedited review is requested under Or. Rev. Stat. § 34.370 due to ongoing restraint without proper authority subjecting Petitioner to irreparable harm.

II. Next Friend Verification

7. Ash Le' Penn, is the current partner, co-parent and business partner of Petitioner, Barry Washington, and the

1 listed victim in the underlying criminal case.

2 8. Ash Le' Penn, as next friend, brings this petition solely to protect Petitioner's statutory and constitutional rights
3 and attests to having no personal interest adverse to him.

4 9. Petitioner is unable to personally pursue this petition due to his current confinement and the very limited access
5 to legal resources.

6 10. This petition is verified by the undersigned next friend as required by Or. Rev. Stat. § 34.370(2).

7 **III. Statutory and Jurisdictional Basis**

8 11. The challenged restraint arises from a judgment imposing a two-year term of PPS following the revocation and
9 amendment of the original presumptive probationary sentence under a 6H grid block.

10 12. This petition does not dispute the factual findings or legal correctness of a presumptive probation sentence.

11 Rather, it asserts that the sentencing court lacked statutory authority to impose post-prison supervision under the
12 applicable sentencing grid, rendering the PPS component void and Petitioner's continued confinement unlawful
13 within the meaning of ORS 34.310.

14 13. The Oregon Court of Appeals has held that courts have no "inherent authority to modify executed sentences."

15 *See State v. Hoffmeister*, 164 Or. App. 192, 196, 990 P.2d 910 (1999) (*citing State v. DeCamp*, 158 Or. App. 238,
16 243, 973 P.2d 922 (1999)) ("the trial court had no authority to modify [the] executed sentence [.]"). *Accord*
17 *Hoffmeister*, 164 Or. App. at 197 ("the defendant's probationary sentence had been executed," and thus "the trial
18 court had no authority to modify [the] executed sentence"). *See also State v. Bolf*, 217 Or. App. 606, 610–11, 176
19 P.3d 1287 (2008) (holding that where the court accepted a stipulation at sentencing to a grid block that carried a
20 presumptive probationary sentence, the court lacked authority to later reclassify the defendant to a different grid
21 block in order to impose a greater probation revocation sanction). Thus, trial courts are without inherent authority
22 to modify sentences that have already been executed.

23 14. Under Oregon law, post-prison supervision may be imposed only following a valid prison sentence or a
24 qualifying straight jail term. In this case, no such sentence existed. The court's imposition of post-prison
25 supervision exceeded its statutory authority, rendering that portion of the judgment void ab initio and
26 Petitioner's continued restraint unlawful.

27 15. Any sentence imposed which violates what has been established by legislature in the sentencing scheme is void
28 for lack of authority. *See Leathers*, 271 Or. at 240; *Gaynor v. Board of Parole & Post-Prison Supervision*, 165

Or. App. 609, 613, 996 P.2d 1020 (2000) (agency cannot extend supervision term beyond the term imposed by the sentencing court or authorized by law).

16. The Due Process Clause of the U.S. Constitution prohibits the government from imposing criminal punishment without legal authority, and any punishment imposed beyond what is authorized by statute constitutes an arbitrary and unauthorized deprivation of liberty.

17. Or. Rev. Stat. § 137.010(10) ensures compliance with the Due Process Clause of the U.S. Constitution by requiring that a judgment of conviction for a felony committed on or after November 1, 1989, must state both the length of incarceration and the length of post-prison supervision.

18. A trial court's grant of authority in sanctioning defendants is statutorily limited by the grid block classifications set forth in the judgment of conviction.

19. Or. Rev. Stat. § 137.545(b) provides, in relevant part, “For defendants sentenced to felonies committed on or after November 1, 1989, the court that imposed the probationary sentence may revoke probation supervision and impose a sanction as provided by rules of the Oregon Criminal Justice Commission.

20. Or. Admin. R. 213-010-0020(4) requires that probation revocation sanctions imposed must be in accordance with OAR 213-005-0002.

21. The statutory framework governing revocation of presumptive probation is explicit: Or. Rev. Stat. § 137.545(5)(b) and OAR 213-010-0002(1) limit the maximum sanction upon revocation to no more than six months in the custody of the local supervisory authority, with no provision for any additional term of post-prison supervision.

22. Or. Admin. R. 213-010-0002(5) mandates that no revocation sanction may exceed the limitations established by this rule.

23. Or. Admin. R. 213-005-0002(1) states that a term of community supervision is part of the sentence for any felony offender who is sentenced to the legal and physical custody of the Department or to the supervisory authority.

24. Or. Admin. R. 213-005-0002(1) does not independently authorize the imposition of post-prison supervision for every offender committed to local custody; it must be read in harmony with the statutory cap on revocation sanctions for presumptive probation cases.

25. Or. Rev. Stat. § 137.124(2) distinguishes between sentences to the Department of Corrections for terms greater

1 than 12 months and sentences to the local supervisory authority for terms of 12 months or less.

2 **26.** The administrative rule’s reference to “any felony offender sentenced to the physical custody of the supervisory
3 authority” is directed at felony offenders who, at sentencing, receive a straight jail sentence of 12 months or less,
4 such as those receiving a downward departure to probation when the grid block called for a prison sentence, or
5 those sentenced directly to a jail term of 12 months or less under other circumstances – in those cases the rules
6 and statutes may authorize a term of PPS or community supervision following jail confinement in these
7 instances, because their sentence is not governed by the presumptive probation limitation the legislature
8 explicitly set apart by rule with a six-month statutory cap for revocation sanctions, nothing more.

9 **27.** For guideline offenders sentenced to presumptive probation, OAR 213-010-0002(1) specifically limits the
10 revocation sanction to a maximum of six months in local custody and does not authorize the imposition of a term
11 of post-prison supervision solely because a defendant is committed to the local supervisory authority under Or.
12 Admin. R. 213-005-0002.

13 **28.** There exists no statutory or administrative authority for the imposition of post-prison supervision following
14 revocation of a presumptive probationary sentence where the sanction imposed is a term of local jail time of six
15 months or less pursuant to OAR 213-010-0002(1)(e).

16 **29.** While Or. Rev. Stat. § 137.010(10) permits the imposition of local jail time in lieu of a prison sentence—thereby
17 potentially triggering a term of post-prison supervision upon revocation—this provision is inapplicable where the
18 underlying sentence is presumptive probation, and the custodial sanction imposed upon revocation is required to
19 fall within a six-month maximum authorized by the guidelines. In such cases, the jail sanction is not a prison
20 substitute but a structured response within the presumptive probation framework, and thus does not give rise to
21 any lawful basis for post-prison supervision.

22 **30.** *Baty v. Slater*, 161 Or. App. 653, 656, 984 P.2d 342 (1999), interprets Or. Admin. R. 213-005-0002(3) to mean
23 that PPS commences only upon completion of a prison term, not a local jail sanction imposed following
24 presumptive probation.

25 **31.** The statutory and administrative framework draws a clear distinction between those offenders who may receive a
26 term of PPS community supervision (i.e., downwardly departed felony jail sentences of 12 months or less) and
27 those for whom the sentencing guidelines limit the sanction to local custody only (presumptive probation
28 revocations) following revocation.

1 32. The imposition of PPS under Petitioner's circumstances is not an authorized sentence permitted by statute or rule
2 as his sentence was presumptive and no prison time, and thereby no post-prison time, could have been imposed.

3 33. The Oregon Criminal Justice Commission's guidelines and Or. Rev. Stat. § 137.669 require that all felony
4 sentences after November 1, 1989, comply with the Commission's rules unless another statute expressly applies,
5 but which does not authorize PPS for presumptive probation revocations.

6 34. Or. Rev. Stat. § 34.310 authorizes habeas corpus relief for persons restrained under color of a judgment not
7 issued by a court of competent jurisdiction. In Petitioner's case, the court was not granted authority, and so it
8 exceeded its jurisdiction when it imposed a two-year term of PPS upon revocation.

9 35. Petitioner, after being committed to the custody of the local supervisory authority following a 120-day custodial
10 revocation sanction prior to a two-year term of post-prison supervision has now been subjected to a total term of
11 28 months in the custody of the local supervisory authority when the statutory cap limited his revocation sanction
12 to six months.

13 36. Under Or. Rev. Stat. § 137.071(1), a judgment of conviction must clearly specify all legal consequences the court
14 establishes or imposes, including any term of imprisonment, probation, conditions of probation, restitution, and
15 all other sentences and legal consequences. This statutory requirement ensures that the defendant receives notice
16 of the full scope of the court-imposed sentence. The statute does not require inclusion of consequences that are
17 not established or imposed by the court itself.

18 **IV. Factual Background**

19 (Petitioner incorporates by reference all prior paragraphs of this petition as if fully set forth herein.)

20 37. Petitioner was sentenced in September 2021 in the underlying case pursuant to a negotiated plea agreement under
21 the Oregon Sentencing Guidelines, specifically grid block 6H, resulting in presumptive probation for which the
22 plea agreement did not contemplate PPS as any part of the sentence or as a later possible revocation sanction.

23 38. The original judgment did not include a term of PPS as required for judgments of conviction under Or. Rev. Stat.
24 § 137.010(8) pursuant to required notice under the Due Process Clause of the U.S. Constitution if any later
25 imposition of such supervision is to be validly imposed.

26 39. On February 9, 2023, the court revoked Petitioner's probation and imposed a revocation sanction of 120 days in
27 local custody.

28 40. The court also imposed a two-year term of PPS following the custodial revocation sanction without findings of

aggravating or compelling circumstances or lawful grounds for departure from the guidelines.

V. Derivative Custodial Actions Are Void Where Underlying Supervision Is Void

(Petitioner incorporates by reference all prior paragraphs of this petition as if fully set forth herein.)

41. The authority of the local supervisory authority or supervising officer to impose conditions, issue warrants, arrest, or detain is contingent upon the existence of a valid PPS term imposed in accordance with law (Or. Rev. Stat. §§ 144.350, 137.545(2); Or. Rev. Stat. § 144.085).

42. Where the underlying imposition of PPS exceeds statutory authority and is thereby void, all derivative actions—including issuance of warrants, arrest, detention, and violation proceedings—are without legal foundation and ultra vires.

43. A sentence must be in conformity with the governing statute; any non-conforming sentence is void for lack of authority and thus totally without legal effect. *See, e.g., State v. Cotton*, 240 Or. 252, 254, 400 P.2d 1022 (1965); *accord State v. Commedore*, 239 Or. 82, 85, 396 P.2d 216 (1964); *Rightnour v. Gladden*, 219 Or. 342, 347 P.2d 103 (1959).

44. If there is an error by the sentencing court in its imposed sentence, it has a duty to take corrective action and to impose a valid sentence. *See State v. Cotton*, 240 Or. at 254.

45. Absent the unlawful imposition of PPS, no authority for any subsequent restraint or sanction would exist.

46. The continued restraint on Petitioner's liberty is the direct and proximate result of the imposition of PPS in excess of the court's statutory grant of sentencing authority, and all subsequent actions taken under color of that supervision—including conditions of supervision, searches, issuance of warrants and arrest, and any time spent in confinement—all are subject to Petitioner's collateral challenge in this habeas proceeding.

47. Petitioner contends that the sentencing court's imposition of PPS was in excess of statutory authority and contrary to the Oregon Sentencing Guidelines, rendering the sentence void ab initio. *See State v. Leathers*, 271 Or 236, 240, 531 P.2d 901 (1975); *State v. Speedis*, 350 Or 424, 431, 256 P.3d 1061 (2011).

48. Any and all derivative actions or deprivations deriving from that a judgment exceeding the courts statutory sentencing power are likewise void and unenforceable. *See Gaynor v. Board of Parole*, 165 Or App 609, 996 P.2d 1020 (2000).

49. This claim is properly brought in habeas corpus because the defect constitutes a substantial and exceedingly irreparable denial of constitutional rights under Or. Rev. Stat. § 138.540(2) stating "When a person restrained

1 by virtue of a judgment upon a conviction of crime asserts the illegality of the restraint upon grounds other than
2 the unlawfulness of such judgment or the proceedings upon which it is based or in the appellate review thereof,
3 relief shall not be available under ORS 138.510 (Persons who may file petition for relief) to 138.680 (Short
4 title) but shall be sought by habeas corpus or other remedies, if any, as otherwise provided by law. As used in
5 this subsection, such other grounds include but are not limited to unlawful revocation of parole or conditional
6 pardon or completed service of the sentence imposed”.

7 **50.** The Oregon Supreme Court in *Watkins v. Ackley*, 370 Or 604, 622 (2022), recognized that a conviction or
8 sentence is subject to collateral attack where the court lacked authority to impose the challenged sanction.

9 **51.** Petitioner asserts ineffective and inadequate assistance of counsel in that any statutes of limitation or other
10 procedural bars to this petition should be excused under the “escape clause,” because trial, appellate, and post-
11 conviction counsel all failed to raise this jurisdictional and statutory challenge and he could not reasonably have
12 been expected to know or to look for this error. This brings the petition within the exception to procedural bars
13 codified in Or. Rev. Stat. § 138.510(3) and interpreted in *Gutale v. State of Oregon*, 364 Or 502, 435 P.3d 728
14 (2019). *See also* Or. Rev. Stat. § 138.510(3) (providing for the escape clause); *cf. Gutale*, 364 Or at 507–10
15 (discussing when the escape clause applies to otherwise time-barred claims).

16 **VI. Unlawful Confinement Even if PPS was Lawful**

17 (Petitioner incorporates by reference all prior paragraphs of this petition as if fully set forth herein.)

18 **52.** In the alternative, and without waiving any of the foregoing contentions, if this Court finds that the imposition
19 of post-prison supervision was lawful, Petitioner asserts that his current confinement is nonetheless without
20 requisite and competent authority, and thereby unlawful on other grounds.

21 **53.** On November 26, 2024, the Local Supervisory Authority (“LSA”) issued a warrant for Petitioner’s arrest
22 without have exercised any effort to contact him by phone, email., letter or text message. Petitioner was later
23 arrested on May 10, 2025, pursuant that warrant and despite the fact that his two-year term of post-prison
24 supervision was scheduled to have expired by operation of law on April 20, 2025.

25 **54.** The agency’s ability to sanction or confine is contingent upon the individual’s ongoing, lawful status as a
26 supervisee; that authority terminates when the period of supervision expires.

27 **55.** Or. Admin. R. 255-075-0001(3) explicitly states: “Initiate a hearing” means person under supervision is
28 presented a Notice of Rights.

1 56. Or. Admin. R. 291-058-0045(8) states, “Sanctioning of offenders held in jail on officer’s detainer for violations
2 of parole or post-prison supervision, short-term transitional leave, or non-prison leave conditions: Within 15
3 days of the offender’s arrest, either a structured sanction must be imposed or violation hearing proceedings
4 initiated”.

5 57. Petitioner did not receive his Notice of Rights Form, despite the warrant’s issuance prior to expiration, until
6 after the term of his supervision expired (04/20/25 without agency unilateral extension and 05/15/25 if
7 extension will be found to have been valid) on either May 21st or 22nd; thus, the agency had already lost its
8 authority to further confine or attempt to initiate any violation proceedings involving Petitioner.

9 58. The agency’s initial extension of Petitioner’s supervision term beyond the original expiration date, relying on a
10 prior abscond warrant, and even though Petitioner had reported in-person the day before the warrant (reserved
11 for absconding individuals) was issued, was only the first of two unlawful extensions. The second extension
12 took place prior to any Notice of Rights Form being communicated after arrest on May 10, 2025, and only
13 after the releasing authority was made aware of the sentence’s May 15th expiration on May 20th, 2025.

14 59. Sergeant Wiley of the Washington county Sheriff’s office provided that the agency had 15 days to impose a
15 sanction and was made aware of Petitioner’s expiration transpiring prior to and within the 15 days claimed
16 pursuant to Or. Rev. Stat. § 144.106 and Or. Admin. R. 291-058-0045(8).

17 60. Sergeant Wiley requested time to confer with counsel but later provided that the Sheriff’s office was
18 committing no violation in maintaining Petitioner’s confinement because Petitioner’s term of supervision had,
19 again, been extended to February 10, 2026.

20 61. This extension was executed outside the agency’s rules and in excess of the agency’s authority, prior to the
21 initiation of violation proceeding as defined by administrative rule. This extension violated Petitioner’s due
22 process as well as the separation of powers by modifying a court-imposed sentence of which is determined by
23 legislation and prior to any initiation of a violation hearing.

24 62. Further, the agencies responsible for community supervision must comply with rules adopted by the Oregon
25 Department of Corrections (ODOC) in conjunction with the Board of Parole and Post-Prison Supervision as
26 well as rules established by the Oregon Criminal Justice Commission (OCJC) regarding sanctioning and
27 supervision practices. *See* Or. Rev. Stat. § 144.106(1); Or. Admin. R. 291-058-0010 et seq.

28 63. As stated in those rules, it is the policy of the Department of Corrections to provide, in conjunction with the

Board of Parole and Post-Prison Supervision in accordance with Or. Rev. Stat. § 144.106 (Violation of post-prison supervision conditions), Or. Rev. Stat. §144.346 (Parole revocation sanctions), and Or. Admin. R. 255-075 (Board of Parole and Post-Prison Supervision administrative rules) specific direction for department and county community corrections agency employees to follow when considering administrative sanctioning options for offenders under supervision.

64. The authority to impose or extend a term of post-prison supervision, however, a power reserved by statute to the courts and not delegated to administrative agencies under any rule or law

65. The Local Supervisory Authority has only been granted the authority, upon identifying violation behavior, to determine the level of violation behavior for response options, direct the supervisee into appropriate interventions, impose appropriate administrative sanctions using the Administrative Sanctions Grid or impose a higher sanction than the sanction's grid identifies after following an approval process established by the local supervisory authority. Agencies may not unilaterally extend the term of a court-imposed sentence. *See Gaynor v. Board of Parole & Post-Prison Supervision*, 165 Or. App. 609, 613, 996 P.2d 1020 (2000) (holding that an agency may not extend supervision beyond the term imposed by the court or authorized by law).

66. Or. Rev. Stat. § 144.085(1)-(2) and Or. Admin. R. 213-005-0002(2)(a) establish that the duration of PPS is determined by the crime seriousness category of the most serious current conviction, and any extension of supervision is subject to strict statutory limits.

67. Or. Rev. Stat. § 144.085(3)-(4) and Or. Rev. Stat. § 144.103 provide that the LSA may request extension of the active period of supervision "no sooner than 30 days prior to expiration," and any extension may not exceed the supervision term imposed by the sentencing court under the rules of the Oregon Criminal Justice Commission.

68. Or. Rev. Stat. § 144.106(3) and Or. Admin. R. 213-005-0002(2)(a) prohibit confinement for more than 15 days for a PPS violation, absent specific statutory exceptions.

69. The agency's actions in unilaterally extending Petitioner's supervision term exceeded its statutory authority, violated the separation of powers under Article III, Section I of the Oregon Constitution, and rendered any additional restraint beyond the original expiration unlawful.

70. In *Gaynor v. Board of Parole & Post-Prison Supervision*, 165 Or. App. 609, 613, 996 P.2d 1020 (2000), the Court of Appeals held that any extension of supervision must not exceed the term imposed by the sentencing court under the rules of the Oregon Criminal Justice Commission and applicable laws.

1 71. Any action by the LSA to extend supervision, impose sanctions, or issue warrants after the expiration of the
2 judicially imposed term, or based on a void PPS term, is ultra vires and without legal effect. *See State v.*
3 *Leathers*, 271 Or. 236, 240, 531 P.2d 901 (1975); *Gaynor*, 165 Or. App. at 613.

4 72. Petitioner's continued confinement under a void or expired sentence constitutes cruel and unusual punishment,
5 in violation of Article I, section 16 of the Oregon Constitution, and the Eighth and Fourteenth Amendments to
6 the U.S. Constitution. Oregon courts have long recognized that unlawful or excessive punishment—particularly
7 confinement beyond the limits authorized by law—can give rise to a cognizable constitutional violation. *See*
8 *State v. Wheeler*, 343 Or 652, 175 P.3d 438 (2007); *State v. Rodriguez/Buck*, 347 Or 46, 217 P.3d 659 (2009).

9 **VII. Prayer for Relief**

10 73. WHEREFORE, Petitioner respectfully requests that this Court:

- 11 a. Issue a writ of habeas corpus directing Respondent to show cause why Petitioner, Barry Washington,
12 should not be immediately released from custody.
- 13 b. Declare the term of post-prison supervision and all subsequent derivative actions including warrants,
14 arrests, and violation proceedings, void and without legal effect.
- 15 c. Order immediate release from all custody or restraint based on the challenged judgment or any derivative
16 action.
- 17 d. Take judicial notice of the original sentencing judgment and subsequent revocation order in Washington
18 County Circuit Court Case No. 21CR25804, which are central to this petition.
- 19 e. Grant such further relief as the Court deems just and proper.

20 **VIII. Motion for Temporary Restraining Order**

21 74. Petitioner, by and through next friend, moves for an immediate temporary restraining order pursuant to the
22 Court's equitable powers and Or. R. Civ. P. 79, to preserve the status quo and prevent irreparable harm during
23 the pendency of this habeas proceeding. Petitioner requests that the Court order as follows:

24 Requested Relief:

- 25 a. Respondent, and all agents or persons acting in concert with Respondent, be temporarily restrained from:
 - 26 i. Initiating or enforcing any further custodial sanctions, detention, or arrest of Petitioner based on the
27 challenged PPS term.
 - 28 ii. Issuing or executing any new warrants or violation proceedings predicated on the challenged PPS

term.

iii. Imposing or collecting any additional conditions, sanctions, or penalties arising from the challenged PPS term.

iv. Taking any action that would alter Petitioner's custody status, save his immediate release, or conditions of confinement based on the challenged PPS term, except as required by law or court order.

IX. Grounds

75. Any imposition of a term of PPS following a local jail revocation sanction for presumptive probation constitutes a sentence imposed outside of legislatively mandated parameters and violates the separation of powers by infringing upon the legislature's exclusive authority to define criminal punishments

76. Petitioner is likely to suffer irreparable harm in the absence of temporary injunctive relief, including continued unlawful restraint and further deprivations of liberty such as ongoing separation from family, loss of employment, and risk of homelessness, with cascading effects on Petitioner's ability to maintain stable housing, employment, and familial relationships.

77. The requested relief is narrowly tailored to preserve the status quo and prevent actions that may not be lawfully taken if the challenged PPS term is found unauthorized.

78. The imposition of PPS deprived Petitioner of his fundamental right to liberty after serving the required local custodial presumptive probation revocation sanction. Petitioner's core constitutional interests are protected by the Due Process Clause of the Fourteenth Amendment and Article I, Section 10 of the Oregon Constitution;

79. The court's imposition of PPS violates the separation of powers established under the Oregon Constitution; legislation has the sole responsibility of determining the punishments for crimes.

80. Results in emotional and psychological trauma, including anxiety, depression, and distress, which cannot be undone or compensated retroactively.

81. Constitutes a continuing violation of constitutional and statutory rights, for which there is no adequate remedy at law.

82. The harm is immediate, ongoing, and irreparable, warranting expedited judicial intervention.

X. Verification

83. I, Ash Le' Penn, acting as next friend for Petitioner Barry Washington, certify under penalty of perjury and

pursuant to Oregon law that:

- a. This petition and supporting affidavit are submitted in good faith and not for any improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation.
- b. To the best of my knowledge, information, and belief, formed after reasonable inquiry, the factual statements herein are true and correct, and the legal contentions are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law.
- c. This petition complies with all applicable rules and statutory requirements for habeas corpus filings in the State of Oregon.

Executed on the 29th day of May, 2025 .



Ash Le' Penn, Next Friend of Barry Washington

Certificate Of Document Preparation

Pursuant to UTCR 2.010(7) I hereby certify that the following is true:

I selected this document, and it was prepared without paid assistance.

DATED this 27th day of May 2025



Ash Le' Penn Signature of Next Friend to Petitioner, Mr. Washington

Certificate Of Service

I certify that I served the foregoing Plaintiff's Petition For Writ For Habeas Corpus on the Respondent by U.S. mailing a true copy thereof, certified by me as the Next Friend of Petitioner, Mr. Washington, upon the following parties:

Trial Court Administrator

145 NE 2nd Ave,
Hillsboro, OR 97124

Washington County Sheriff

215 SW Adams
Hillsboro, OR 97123

Washington County Community Corrections

150 N First Avenue, Suite 200, MS 46
Hillsboro, OR 97124
County Counsel

Office of County Counsel

155 N First Avenue, Suite 340
Hillsboro, OR 97124

DATED this 29th day of 2025.



Ash Le' Penn Signature of Next Friend to Petitioner, Mr. Washington

SID#: 14798711